

Pieces of a Man: Reflections on Penal Law and Human Rights

“The prison...impos[es] violent constraints on its inmates; it is supposed to apply the law, and to teach respect for it; but all its functioning operates in the form of an abuse of power.”¹

I chose to create a mosaic that I have titled ‘Pieces of a Man’ as my final project for Michael Jackson’s seminar on penal policy. The image that I have created is a representation of one of Shane Jackson’s photographs from the book, *Justice Behind the Walls: Human Rights in Canadian Prisons*.² It depicts an inmate, Jeff Blackburn, at the Matsqui Institution looking out of his segregation cell from the food slot. I find the image to be extraordinarily powerful because of the nature of administrative segregation within the prison system and because the photograph viscerally captures Mr. Blackburn’s isolation. I wanted to recreate the photograph as a mosaic because I feel the medium demonstrates the effect of incarceration, and particularly administrative segregation, on a person’s humanity. Imprisonment, literally and figuratively, breaks down the individual. It fractures one’s identity, and renders him as a “broken” figure or one that is “in need of fixing.” Edgar Roussel in an interview with Michael Jackson expressed that idea as follows, “[t]he system aims to reduce the criminal to nothing, restrain the slightest initiative, and in one word, assassinate his personality to make him conform...”³ All of the small parts of the mosaic come together to form the larger picture. When Jeff Blackburn stares out from his food slot, it is the culmination of

¹ Paul Rabinow, ed, *The Foucault Reader*, (New York: Pantheon, 1984) at 227.

² Michael Jackson, *Justice Behind the Walls: Human Rights in Canadian Prisons*, (Vancouver/Toronto: Douglas & McIntyre, 2002).

³ *Ibid* at 518.

countless discrete processes that have lead to that particular moment. Some of the processes are within his control and many of them are not. This is especially so in administrative segregation where there is an abject lack of control and autonomy over his liberty.

The idea that a prisoner is “broken down” by the penal system so that they can be “built up” again as a law-abiding citizen, or reformed, is a misguided one. Michel Foucault once referred to prisons as a state “apparatus for transforming individuals”. Prisons, for Foucault, are “from the outset a form of “legal detention” entrusted with an additional corrective task, or an enterprise for reforming individuals...”⁴ I think this conception of Western penal systems is supported by the many of the comments made by the inmates in *Justice Behind the Walls*, particularly those of Gary Weaver. It is also enshrined in the Correctional Service of Canada (“CSC”) Mission Statement that says the CSC contributes to the protection of society “by actively encouraging and assisting offenders to become law abiding citizens”.⁵ While I do not doubt that imprisonment can act as a deterrent, I do not think that the CSC really plays a role in rehabilitating offenders. As Michael Jackson notes, teaching prisoners to respect the rule of law requires that the correctional system itself follow it. If the inmates do not see the actions and decisions of prison authorities as rational, reasonable, or equitable, then they will not respect the rule of law. The saga of Gary Weaver, as described in *Justice Behind the Walls*, stands as a perfect example of the failure

⁴ *Supra* note 1 at 216.

⁵ *Supra* note 2 at 36.

of the CSC to “encourage and assist” his rehabilitation. When Mr. Weaver came in and spoke to our class, it was obvious that the changes that he made in his life came largely from within, not as a result of the CSC. As Professor Jackson points out, “justice [i]s mediated by institutional policies and convenience rather than by the law.”⁶

Administrative segregation is the extreme end of imprisonment and is used by the CSC as a corrective measure to control inmate behavior. Humans are by nature social creatures and to deny a person virtually all contact with others is in many ways a denial of their humanity. As Michael Jackson notes, “Where else in the prison system can a prisoner who is socially isolated feel even more isolated? Where else can a prisoner with cognition problems, poor conflict resolution skills, and a low frustration tolerance experience conditions in which these are put to the most severe test on a daily basis?”⁷ This is best expressed by Gary Weaver when he said, “slowly but surely, you lose your sense of self and your sense of community.”⁸ The toll of administrative segregation on a prisoner’s mental health must be accounted for in a just society and one that holds the *Canadian Charter of Rights and Freedoms* up as the supreme law of the land. An offender, to be sure, suffers a loss of liberty when they are imprisoned. However, the prisoner does not have their basic rights under Canadian law taken away as soon as they are brought under the purview of the CSC. Prisoners cannot be

⁶ *Supra* note 2 at 380.

⁷ *Supra* note 2 at 385.

⁸ *Supra* note 2 at 521.

deprived of impartial, fair, and thorough hearings on matters that directly affect their interests. As Michael Jackson notes, “Where a prisoner’s rights are at stake and correctional administrators have made a preliminary decision not to disclose relevant information...the issue should be referred to an independent adjudicator who...would assess the justification for these decisions.”⁹

Fyodor Dostoyevsky once said that, “you can judge the civilization of a society by entering its prisons.” I think that this rings as true today as when he wrote it. How the prisons operate in Canada, as well as the effect that prison law and administration has on its prisoners operates as a benchmark for the rest of society to judge itself. The fact that administrative segregation and the almost secret trials of prisoners continue to happen stand as a warning to Canadians. All it takes is one poor decision and a little bad luck to find oneself caught up in CSC’s regime. It’s a scary proposition to think that anyone’s right to humanity and dignity can be transgressed so easily by the state. Once it occurs, you become the fractured, the broken, and the assassinated. I cannot begin to understand the isolation and brutality that Jeff Blackburn faced during his 74 days in segregation. The image will remain with me throughout the rest of my legal career, I tried to honor it by recreating it and to remember that inside those walls were the ‘Pieces of a Man’.

⁹ *Supra* note 2 at 469.